

NON-DISCLOSURE AGREEMENT (v2.0 - Revised)

This Non-Disclosure Agreement ("Agreement") is dated February 20, 2026, between Vertex Systems LLC ("Discloser") and

1. PURPOSE

The parties wish to explore a potential strategic acquisition of Recipient's technology assets ("Purpose").

2. CONFIDENTIAL INFORMATION

"Confidential Information" refers to all technical, business, financial, and strategic information disclosed by Discloser, whether

3. OBLIGATIONS (ONE-WAY STRICT)

Recipient agrees:

- (a) To hold Discloser's Confidential Information in strictest confidence using utmost degree of care.
- (b) To use Confidential Information solely to evaluate the acquisition.
- (c) Not to disclose Confidential Information to any third party or employee without Discloser's express written pre-approval.
- (d) Confidentiality obligations shall survive in perpetuity (indefinitely) for trade secrets and five (5) years for general information.
- (e) Liquidated Damages: Any unauthorized disclosure shall result in liquidated damages of \$250,000 per violation.

4. NON-SOLICITATION

Recipient agrees not to solicit or hire any engineer or manager of Discloser for twenty-four (24) months.

5. TERMINATION AND RETURN

Discloser may terminate discussions immediately without notice. All materials must be certified destroyed within forty-eight (48) hours.

6. GOVERNING LAW AND INJUNCTIVE RELIEF

This Agreement is governed by the laws of New York State. Discloser is entitled to immediate injunctive relief and attorney's fees.